

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 27, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Pete Laybourn. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Johnson and Mr. Cook, item #19(d) was removed from the Consent Agenda. Mr. White moved to approve the remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 13, 2023. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, tracts of land situated in portions of Sunny Side Addition and Sunnyside Addition Second Filing, Section 12, T. 13 N., R. 67 W., 6th P.M., Laramie County Wyoming, generally located east of Ridge Rd. between Charles St. and Pershing Blvd., west of Wills Rd. between Cheyenne St. and Pershing Blvd., and northeast of the intersection of Pershing Blvd. and Wills Rd. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4495)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the Zoning Classification from County MU Mixed Use to MUB Mixed-Use Business Emphasis and CB Community Business for tracts of land situated in portions of Sunny Side Addition and Sunnyside Addition Second Filing, Section 12, T. 13 N., R. 67 W., 6th P.M., Laramie County, Wyoming, generally located east of Ridge Rd. between Charles St. and Pershing Blvd., west of Wills Rd. between Cheyenne St. and Pershing Blvd., and northeast of the intersection of Pershing Blvd. and Wills Rd. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4496)

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land located west of Southwest Drive south of I-80. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Ben Hornok, Shane Hansen, Steli Surveying Services,

agent for the applicant, and Mike White. Comment was made by the following members of the governing body: Mayor Collins and Dr. Rinne.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LR Low-Density Residential to LR Low-Density Residential for land located west of Southwest Drive south of I-80. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Repealing and recreating code provisions prohibiting drug paraphernalia as specified, and amending Section 9.20.020, Narcotics and Drugs, of Chapter 9.20, Controlled Substances, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate municipal prohibitions governing marijuana. Mr. Johnson moved to approve on second reading, seconded by Mr. Roybal. Motion failed. Voting “yes” – Mr. Esquibel, Mr. Johnson, and Mr. Roybal. Voting “no” – Mayor Collins, Dr. Aldrich, Mr. Cook, Dr. Rinne, Mr. Segrave and Mr. White. Public comment was made by: Ben Hornok, Max Esdale, Rhea Parsons, Matt Freeman, A.J. Gold, Kathleen Peterson, and Arnold Strayer. Comment was made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, and Mr. Johnson.

RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts pursuant to W.S. § 16-4-502. Mr. White moved to adopt, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Dr. Rinne voting “no”. Comment was made by the following members of the governing body: Dr. Aldrich and Dr. Rinne. (#6312)

[CA] RESOLUTION – Expressing the will of the Governing Body to prioritize and adequately fund specified downtown 6th Penny Tax Maintenance and Improvement Projects. Motion (per Consent Agenda) carried. (#6313)

[CA] RESOLUTION – Authorizing the Mayor to enter into a Memorandum of Understanding with Laramie County, Albany County, and the City of Laramie allocating Impact Assistance Funds resulting from an application to construct and operate a mine filed by the Gold King Corp. before the Industrial Siting Division. Motion (per Consent Agenda) carried. (#6314)

RESOLUTION – Authorizing Paydhealth, LLC, to provide advocacy and financial case management services for eligible specialty prescription drugs through alternative funding programs effective July 1, 2023. (Postponed from March 13, 2023). Mr. Johnson declared a conflict of interest and vacated council chambers. Mr. White moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Cook and Mr. Esquibel voting “no”. Comment was made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. White. (#6310)

[CA] RESOLUTION – Providing for the adoption of a Fund Balance Policy in accordance with the Governmental Accounting Standard Board (GASB) Statement No. 54. -Referred to Finance Committee. (Sponsor Mr. White)

[CA] RESOLUTION – Expressing the will of the Governing Body to consider specified Downtown 6th Penny Tax Project Funds for Infrastructure Enhancements for The Children’s Museum of Cheyenne. (2021 Specific Purpose Option Tax Fund) – Referred to Finance Committee. (Sponsors- Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Roybal, Mr. Segrave, and Mr. White)

[CA] RESOLUTION – Adopting the Wyoming Region 7 Hazard Mitigation Plan 2023 Update. -Referred to Finance Committee. (Sponsor- Mr. White)

[CA] RESOLUTION – Authorizing the Mayor to execute settlement participation forms for the City of Cheyenne to participate in the Settlement Agreements designated as the “Teva, Allergan, CVS, Walgreens, Walmart National Opioid Settlement”. (Revenue to City) – Referred to Finance Committee. (Sponsor- Mr. White)

[CA] Sponsorship Agreement between the City of Cheyenne and HollyFrontier Cheyenne Renewable Diesel Company, LLC to designate HollyFrontier as the presenting sponsor of 2023 Superday, Superday Tour de Prairie and the Superday 5K walk/run (Revenue to the City) Motion (per Consent Agenda) carried. (#7714)

[CA] Agreement between the City of Cheyenne and the Cheyenne Umpires Association for the 2023 and 2024 Softball seasons (Recreation Programs Fund) Motion (per Consent Agenda) carried. (#7715)

[CA] Right-of-Way License Agreement between the City of Cheyenne and Bent 15, LLC for a portion of Lots 12, 13, 14, 15, 16, 17 and 18, Block 413, Original City of Cheyenne, Laramie County, Wyoming, known at 1509 Bent Avenue. Motion (per Consent Agenda) carried. (#7716)

Professional Services Agreement between the City of Cheyenne and TDSi - The Design Studio, inc., for the Gymnastics Facility Site Development, Engineering and Architectural Plans Project (Recreation Programs Fund). Mr. White moved to approve in an amount not to exceed \$293,844.00, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. Public comment was made by: Mike White and Randy Byers, TDSi – The Design Studio, inc. Comment was made by the following members of the governing body: Mayor Collins, Dr. Aldrich, Mr. Cook, and Dr. Rinne. (#7717)

[CA] Easement Agreement between the City of Cheyenne and Visionary Communications LLC for constructing, reconstructing, maintaining, operating, repairing, inspecting, surveying, altering, abandoning, replacing and/or removing fiber optic cable and related material at 514 West Fox Farm Road (Revenue to the City) Motion (per Consent Agenda) carried. (#7718)

Lease Agreement between the City of Cheyenne and Meals on Wheels of Cheyenne, Inc. for a portion of the property located at 2015 S. Greeley Hwy (General Fund). Mayor Collins asked to vote down the lease agreement. Mr. White moved to approve. Motion died due to lack of a second. Comment was made by the following member of the governing body: Mayor Collins.

[CA] Business Associate Agreement between the City of Cheyenne, Cheyenne Regional Medical Center, and Dr. Clair White for the Behavioral Health Co-Response Project. (Wyoming Department of Health Grant) -Referred to Finance Committee.

[CA] Professional Services Contract between the City of Cheyenne and Kyle M. Brandon for Public Defender Services. (General Fund) -Referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and The Church of St. Mary for Olivet Cemetery grounds maintenance, irrigation, operations and administrative services. (Revenue to the City) -Referred to Finance Committee.

[CA] Development Agreement between the City of Cheyenne and Whitney Ranch 3rd and 4th Filing, LLC, to outline responsibilities for public infrastructure improvements relating to Whitney Ranch 4th Filing Plat. -Referred to Public Services Committee.

[CA] Contract Modification #1 to Contract #7321 for the Development Agreement between the City of Cheyenne and Whitney Ranch, LLC, to outline responsibilities for public infrastructure improvements related to Whitney Ranch 3rd and 6th Filings. -Referred to Public Services Committee.

[CA] Consideration of Bid #E-13-23 for ten (10) portable litter fences for the City of Cheyenne Landfill. (Solid Waste Fund) Motion (per Consent Agenda) carried (in an amount not to exceed \$79,000.00).

[CA] Consideration of Bid #E-15-23 for 95 gallon and 65 gallon automated refuse carts for the City of Cheyenne Sanitation Division (Solid Waste Fund) Motion (per Consent Agenda) carried (in an amount not to exceed \$282,845.00).

[CA] Consideration to Purchase between the City of Cheyenne and Front Range Fire Apparatus for the purchase of one (1) BME Fire Trucks, LLC, BME Freightliner Model 34 Targhee Type 3, 4x4 Fire Engine (2021 Specific Purpose Option Tax Fund) Motion (per Consent Agenda) carried (in an amount not to exceed \$428,000.00).

[CA] Consideration of Bid #S-17-23 for an Agreement between the City of Cheyenne and S & S Builders, LLC for the Pioneer Park Hip Roof Shelter. (Development Impact Fees & Community Development Block Grant) -Referred to Finance Committee.

[CA] Consideration of Bid #E-3-23 for an Agreement between the City of Cheyenne and Goat Green LLC for Vegetation Management for Crow Creek. (Optional 1% Sales Tax Fund & Laramie County Weed & Pest Grant) -Referred to Finance Committee.

Appointments of Elizabeth Haigler to the Housing and Community Development Advisory Council and Mackenzie Howard to the Community Action of Laramie County Board of Directors. Dr. Aldrich moved to approve, seconded by Mr. White. Voting “yes” – all members of the governing body present with the exception of Mayor Collins (mayoral appointments).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held April 10, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a bar & grill liquor license application filed with the City Clerk's Office for Ace's Range LLC d/b/a Ace's Range, 1505 Pioneer Ave., Cheyenne, WY.

Announcement was made of a Public Hearing to be held April 10, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a winery permit application filed with the City Clerk's Office for The Blue Stem Wine House, LLC d/b/a The Blue Stem Wine House, 1909 Warren Ave., Cheyenne, WY.

Announcement was made of a Public Hearing to be held April 10, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 1.29 acres of land at 5224 Ridge Road (located west of Ridge Road, between Jackson Street and Douglas Street).

Under other business:

Public comment was by the following individuals under other business: Joan Franklin.

The following member of the governing body made comments under other business: Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:24 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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